

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

INDEX NO. 152238/2013

SHAUNA WIGGINS,

VERIFIED COMPLAINT

Plaintiff,

-against-

NEW YORK CITY POLICE DEPARTMENT, THE CITY OF
NEW YORK, P.O. CATHERINE VARGAS, Shield #939632,
P.O. "JOHN" VASQUEZ, actual first name unknown, and P.O.
"JOHN/JANE DOES", (the names being fictitious, and who are
employees of the New York City Police Department who are not
presently identified),

Defendants.

Plaintiff, by her attorneys, ASHER & ASSOCIATES, P.C., as and for her Complaint,
respectfully alleges, upon information and belief:

1. On March 9, 2012, plaintiff was and still is a resident of the County of New
York, State of New York.

2. On March 9, 2012, defendant, THE CITY OF NEW YORK (hereinafter "CITY")
was and still is a domestic municipal corporation duly organized and existing under and by
virtue of the Laws of the State of New York.

3. On March 9, 2012, defendant, NEW YORK CITY POLICE DEPARTMENT
(hereinafter "NYPD") was and still is a domestic municipal agency duly organized and existing
under and by virtue of the Laws of the State of New York.

4. On or about March 9, 2012, the defendant P.O. CATHERINE VARGAS, Shield
#939632, was a citizen of the United States and the State of New York and was employed by the
NYPD as a police officer acting under the color of law.

5. Upon information and belief, Officer CATHERINE VARGAS was assigned to
the 28th Precinct of the NYPD at the time of the occurrences alleged in the complaint. She is

being sued in both HER individual and official capacities.

6. On or about March 9, 2012, the defendant P.O. "JOHN" VASQUEZ, actual first name unknown was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer.

7. Upon information and belief, Officer ""JOHN" VASQUEZ, was assigned to the 28th Precinct of the NYPD at the time of the occurrences alleged in the complaint. He is being sued in both HER individual and official capacities.

8. On or about March 9, 2012, the defendants POLICE OFFICERS "JOHN/JANE DOES" were citizens of the United States and the State of New York and were employed by the NYPD as police officers.

9. Upon information and belief, Officers "JOHN/JANE DOES" were assigned to the 28th Precinct of the NYPD at the time of the occurrences alleged in the complaint. They are being sued in both their individual and official capacities.

10. Notice of the plaintiff's claim and intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained, was duly served by said plaintiff upon the defendants, CITY and NYPD, on or about the 5th day of June, 2012 and within ninety (90) days of the causes of action herein accrued, all as required by the General Municipal Law, Section 50-e.

11. At least thirty (30) days have elapsed since the demand or claim upon which the action is founded was served upon the aforementioned defendants for adjustment and the defendants have neglected and/or refused to make an adjustment or payment thereon for said period of thirty (30) days after such presentation.

12. Plaintiff duly submitted to the statutory hearing concerning the justness of her claim.

13. Plaintiff complied with all applicable Sections of the General Municipal Law which are conditions precedent to bringing the action against the defendants, CITY and NYPD.

14. THE action has been commenced within one year after the cause of action of plaintiff accrued.

15. On March 9, 2012, the defendant NYPD was and is a department or agency of defendant CITY that was and is responsible for the appointment, training, supervision, promotion and discipline of the police officers of the NYPD, including the individually named defendants herein.

16. On March 9, 2012, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

17. On March 9, 2012, the defendants CITY and NYPD employed the warrant officers, police officers, jailers, wardens, magistrates, court attendants, clerks, district attorney and HER assistants, drivers, and others hereinafter mentioned in the complaint.

18. Upon information and belief, the defendants CITY and NYPD owned the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in the complaint.

19. Upon information and belief, the defendants CITY and NYPD maintained the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in the complaint.

20. Upon information and belief, the defendants CITY and NYPD controlled the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in the complaint.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAUNA WIGGINS

21. On March 9, 2012, the plaintiff SHAUNA WIGGINS was lawfully on the premises of the Martin Luther King Houses and within and in front of a store located on the corner of Lenox Avenue and 113 Street, New York, New York.

22. Beginning on or about 1:30 pm on March 9, 2012 and continuing at the aforementioned locations, the plaintiff was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants herein.

23. Based upon information and belief, the officers, including the individually named defendants herein, possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

24. Plaintiff SHAUNA WIGGINS was struck about the head, face and body by multiple members of the NYPD, including the individually named defendants herein, forcibly detained and handcuffed.

25. Plaintiff SHAUNA WIGGINS was caused to suffer severe personal injuries.

26. At all relevant times and in all their actions described herein, the defendants, including the individually named defendants herein, were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

27. At all relevant times, the defendant CITY was responsible for the actions of its police officers, and more particularly, defendants Officer CATHERINE VARGAS, Officer "John/" VASQUEZ and OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

28. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff SHAUNA WIGGINS.

29. To date, as a direct result and proximate result of all defendants' actions, plaintiff has suffered physical assault and battery, and continues to suffer physical and emotional pain, permanent physical damage, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

30. Due to the foregoing, plaintiff SHAUNA WIGGINS is entitled to damages

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAUNA WIGGINS

31. Plaintiff SHAUNA WIGGINS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 29, inclusively with the same force and effect as if set for the fully and at length set forth herein.

32. As a result of the aforementioned actions of members of the NYPD, including the individually named defendants herein, plaintiff SHAUNA WIGGINS was placed in apprehension of imminent or offensive contact and was concerned that the defendants were about to cause an offensive or harmful bodily contact.

33. Due to the foregoing, plaintiff SHAUNA WIGGINS is entitled to damages

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAUNA WIGGINS

34. Plaintiff SHAUNA WIGGINS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 32, inclusively with the same force and effect as if set for the fully and at length set forth herein.

35. Plaintiff was arrested, held in custody, restrained of her liberty and forced to spend days and weeks incarcerated.

36. The arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

37. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

38. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be arrested, jailed and charged with a crime.

39. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of her liberty caused her great humiliation and as a result of which she has been damaged.

40. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

41. The charges against plaintiff were wholly dismissed.

42. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; her reputation and character were injured; her earning power permanently impaired.

43. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAUNA WIGGINS

44. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 42, inclusively with the same force and effect as if set forth fully and at length set forth herein.

45. Such conduct breached the protections provided by the New York State Constitution Article I, §§ 6, 11, and 12.

46. As a result of all foregoing conduct and acts of the defendants with respect to the arrest and subsequent events as alleged above, Plaintiff suffered serious physical, mental and emotional injuries as aforesaid, requiring medical and therapeutic treatment and follow-up care. He also suffered serious reputational and economic injuries.

47. The acts and conduct described above deprived Plaintiff of HER rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To be entitled to the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers

acting under color of law.

48. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAUNA WIGGINS

49 Plaintiff repeats, reiterates, realleges and reaffirms each and every allegation contained in paragraphs 1 through 53, inclusively with the same force and effect as if fully and at length set forth herein.

50. Defendants were further negligent in failing to exercise the care in the performance of police duties as a reasonably prudent and careful police officers would have used under similar circumstances.

51. That these defendants were further negligent in that the CITY and NYPD were negligent in the training and instruction of its police and corrections officers by not exercising care in instructing them as to their department, proper police procedure, behavior and conduct as police officers and representatives of the CITY.

52. At all times relevant herein, the acts complained of herein are the direct and proximate result of the failure of the CITY and NYPD to properly select, train, supervise and discipline its employees and servants, and in particular the individual defendants in accordance with the statutes, ordinances, regulations, customs and usages of the defendant CITY and of the State of New York and of the United States of America. Defendant CITY is liable for any torts or liability of the NYPD, its police officers, and its agents and employees under a municipal custom or policy.

53. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to her bed and home for a lengthy period of time; was compelled to seek medical care and attention and

upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from her usual vocation, avocation and activities and upon information and belief will in the future be disabled from her following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

54. All defendants named herein are derivatively liable for the acts of each other.

55. The action comes within one or more of the exceptions set forth in CPLR 1602.

56. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAUNA WIGGINS

57. Plaintiff SHAUNA WIGGINS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 55, inclusively with the same force and effect as if fully and at length set forth herein.

58. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

59. At all relevant times, the defendant CITY was responsible for the training of its police officers, and more particularly, defendants Officer CATHERINE VARGAS, Officer "John" VASQUEZ, OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

60. At all relevant times, the defendant CITY was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the NYPD, including the individually named defendants herein.

61. At all times mentioned herein, the defendant CITY knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff SHAUNA WIGGINS.

62. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to her bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from her usual vocation, avocation and activities and upon information and belief will in the future be disabled from her following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

63. All defendants named herein are derivatively liable for the acts of each other.

64. THE action comes within one or more of the exceptions set forth in CPLR 1602.

65. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAUNA WIGGINS

66. Plaintiff SHAUNA WIGGINS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 64, inclusively with the same force and effect as if fully and at length set forth herein.

67. THE action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section

1983.

68. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

69. The acts and conduct described above deprived Plaintiff of her rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

70. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an

award of punitive damages.

71. As a result of the conduct of Defendants, Plaintiff suffered serious physical injury causing Plaintiff to experience pain and suffering, future pain and suffering, disabling physical symptoms and economic injuries. All of said injuries may be permanent and all have caused diminution in the quality of Plaintiff's life.

72. As a result of the conduct of Defendants, Plaintiff has been forced to incur, past, present and future medical expenses and was and continues to be deprived of her privacy and liberty, has been adversely affected in HER employment and in her ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for her physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

73. In addition, the acts of the Defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which Plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

74. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAUNA WIGGINS

75. Plaintiff SHAUNA WIGGINS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 73, inclusively with the same force and effect

as if fully and at length set forth herein.

76. At all times relevant herein, the aforesaid acts undertaken by the defendants and complained of by plaintiff were so outrageous as to shock the conscience of the court.

77. As a result of the foregoing, plaintiffs suffered serious permanent emotional, mental, physical, reputational and economic injuries.

78. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, the plaintiffs demand:

a. judgment awarding damages on the FIRST CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

b. judgment awarding damages on the SECOND CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

c. judgment awarding damages on the THIRD CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

d. judgment awarding damages on the FOURTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

e. judgment awarding damages on the FIFTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

f. judgment awarding damages on the SIXTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would

otherwise have jurisdiction;

g. judgment awarding damages on the SEVENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

h. judgment awarding damages on the EIGHTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

i. interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: New York, New York
July 8, 2013



By: Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Suite 1200

New York, New York 10038

(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

SHAUNA WIGGINS,

Plaintiff,

INDEX NO. 152238/2013

-against-

INDIVIDUAL
VERIFICATION

NEW YORK CITY POLICE DEPARTMENT, THE CITY OF
NEW YORK, P.O. "JANE" VARGUES, actual first name
unknown, P.O. "JOHN" VASQUEZ, actual first name unknown,
and P.O. "JOHN/JANE DOES", (the names being fictitious, and
who are employees of the New York City Police Department who
are not presently identified),

Defendants.

STATE OF NEW YORK)

COUNTY OF *New York* ss.:

SHAUNA WIGGINS, being duly sworn, deposes and says:

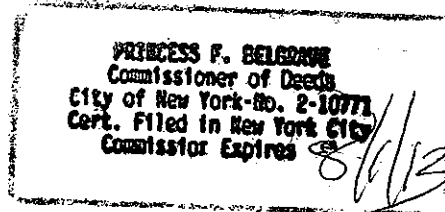
That I am the plaintiff in the within action.

I have read the foregoing Complaint and know the contents thereof and the same is
true to the best of my knowledge, except as to those matters herein stated to be alleged upon
information and belief and that as to those matters, I believe them to be true.

x *Shauna Wiggins*
SHAUNA WIGGINS

Sworn to before me this
5th day of *June*, 2013

[Signature]
NOTARY PUBLIC



Index No. 152238/2013
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

SHAUNA WIGGINS,

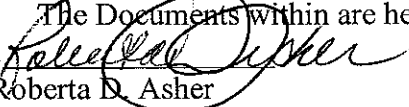
Plaintiff,

-against-

NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK, P.O.
CATHERINE VARGAS, shield #939632, P.O. "JOHN" VASQUEZ, actual first name
unknown, and P.O. "JOHN/JANE DOES", (the names being fictitious, and who are
employees of the New York City Police Department who are not presently identified),

Defendants.

VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:
By: 
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff
111 John Street
Suite 1200
New York, New York 10038
(212) 227-5000

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk of
the

within named Court on , 2013.

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of the
of the within named Court, at , New York, on , 2013, at 9:30 A.M.

Dated: